BLUEFORS
Bluefors Cryocooler Technologies Inc.
6682 Moore Road, Syracuse NY 13211
Phone: 315.455.2555 Fax: 315.455.2544

CRYOMECH
WORLD LEADERS IN CRYOREFRIGERATION FOR MORE THAN 60 YEARS

QUOTATION

Date 10/24/2025
Ticket # 72680

TO:
Massachusetts Institute of Technology
77 Massachusetts Avenue
Building 13 Room 2146
Cambridge MA 02139
United States of America

ATTN: Alexander Wynn

SHIP TO:
Massachusetts Institute of Technology
77 Massachusetts Avenue
Building 13 Room 2146
Cambridge MA 02139

ATTN: Alexander Wynn

Contact: Alexander Wynn
alexander.wynn@cba.mit.edu

Quote No.	REV.	Cust No	S/M	Referenced Inquiry	Terms	Lead Time	Expiration
0010037	01	MIT002	NC		N30	36-40 Weeks ARO	90 Days

Part	Description	Qty	UM	Unit Price		Extended Price
TBD	PT205 Cryocooler, Prototype 5-6 K operation w/100-300 mW 1st stage temp not as important	1.00	EA	39,220		39,220
TBD	PT205 Coldhead, Prototype	1.00	EA			
TBD	CP103A, 208/220V, 1Ph, 60Hz Prototype Helium compressor package. Single Phase Air-Cooled 19" Rack Mountable. ~ 1.5 kW input power.	1.00	EA			
FL12S-0808-10-4K -	SS FLEX LN Ø3/4" STD 10' 3/4" ID, STANDARD, 1/2" AEROQUIP BOTH ENDS, 10 Ft. LONG	2.00	EA	880		1,760
MC-68112-10 -	Motor Cord, 10' Length	1.00	EA	335		335
ITK033 -	Installation Tool Kit	1.00	EA	235		235
P&H -	PACKING & HANDLING	1.00	EA	775		775

2020 Incoterms: FCA 6682 Moore Rd
Syracuse, NY 13211

Total for Quote $ **$42,325**

1. **General; Entire Agreement.** These Standard Terms and Conditions of Sale of Products ("Terms") apply to all Bluefors CTI quotes and all contracts, purchase orders received, or other sales resulting from any such quotes and includes any related attachments or exhibits, and any additional or different terms appearing on Bluefors CTI's acceptance or acknowledgement of a purchase order, which, when read together as one, will govern the relationship between the Buyer and Bluefors CTI and constitute the entire agreement between Bluefors CTI and the Buyer of the Bluefors CTI Products. "Buyer" means the party issuing a purchase order to Bluefors CTI, whether it is the end-user of the Products. "Products" means those goods and services offered for sale by Bluefors CTI (including parts and components) on the date it accepts the Buyer's purchase order, enters into a contract, or other agreement for the sale of Products to the Buyer. These Terms supersede any previous communications, representations, promises, agreements, warranties, statements, or understandings between Bluefors CTI and the Buyer, whether oral or written, regarding sale of Products, all of which are null and void and have no force or effect. Any Buyer terms of purchase (including any Code of Conduct, Corporate Social Responsibility, or similar policies which are not required by laws applicable to Bluefors CTI) are hereby rejected by Bluefors CTI and are null and void and have no force or effect, unless expressly agreed to in writing and signed by both parties. No course of conduct, acquiescence in a course of performance, any prior dealings between Bluefors CTI and the Buyer and or usage of the trade will be relevant to supplement or explain any term used in these Terms. No waiver or modification of any of these Terms will be effective or binding on Bluefors CTI, unless expressly agreed to by Bluefors CTI, in writing. These Terms apply to all quotes and sales of Products between Bluefors CTI and a Buyer located in the United States or other countries, except where otherwise stated.

2. **Quotations; Prices.** Quotations are not valid if the system is for resale to another party or for delivery to another party's address without prior notification to Bluefors CTI. The Buyer must notify Bluefors CTI of its intent to resell the Products to receive a valid quotation. All prices are in U.S. Dollars, F.O.B. shipping point Bluefors CTI's facility, Syracuse, New York, USA, freight prepaid and added. For sales involving international delivery to a location outside the USA, FCA Bluefors CTI's facility, Syracuse, New York, USA, Incoterms® 2020 will apply. Any applicable federal, national, state, provincial, and local taxes (including, without limitation, sales, use, GST/HST, and VAT) relating to the sale of Products are NOT included in the prices and are not the responsibility of Bluefors CTI. Payment of all duties, taxes, and fees in connection with the Buyer's purchase of the Products are the Buyer's sole responsibility. Prices do not include freight and other shipping charges unless Buyer specifically requests a quote to include such charges to a designated destination. Prices are subject to change without prior notice in the event of any of the following: (a) alterations in specifications, quantities, designs, and delivery schedules; (b) increases in the cost of fuel, power, material, supplies, or labor; or (c) any government legislation, decree, trade remedy, tariff, or order that increases the cost of production, warehousing, or sale of the Products purchased by the Buyer.

3. **Impact of Tariffs.** Tariffs are taxes imposed on imported or exported goods. The cost of such tariffs can fluctuate and can't be reasonably determined. This quote/proposal does not account for any adverse impact of Tariffs. The Federal Government controls tariffs on goods imported into the United States to ensure compliance with evolving trade regulations. These tariffs are subject to change at any time with little or no notice.

4. **Tariff Price Adjustment**. Seller shall in its discretion, charge a Tariff Price Adjustment for any tariff imposed that directly or indirectly affects the price of steel or other raw materials used in the production of a product from the date of the first price increase received by the Seller with respect to its raw materials. The Tariff Price Adjustment shall be billed and collected on the last bill for the products in question. Eligibility to Request Price Adjustment if Tariffs change during the term of this contract and directly impact the cost of products, goods, materials, or a clearly defined part thereof required for performance of this contract.

5. **Order Acceptance; Cancellation; Modification.** For any order involving the export, reexport, or transfer (in-country) of the Product, Bluefors CTI requires completion of export controls compliance documentation, including Bluefors CTI requiring completion of Form BIS-711. No purchase order will be processed without the

return of this completed documentation. Bluefors CTI requires that the minimum value of a purchase order must be One-Hundred US Dollars (USD 100.00). All Buyer purchase orders must include the Bluefors CTI quote number and must be sent by email to cryomech.sales@bluefors.com. All purchase orders are subject to acceptance by Bluefors CTI, and a purchase order will be effective only when Bluefors CTI issues a formal written acceptance or acknowledgement of the Buyer's purchase order by any method it deems appropriate, including email. Purchase orders cannot be issued or accepted orally. Bluefors CTI may, in its sole discretion, and without obligation to the Buyer (i) reject any purchase order, either in whole or in part; (ii) cancel any purchase order, either in whole or in part, after its acceptance; or (iii) consent to the Buyer's cancellation of any purchase order, either in whole or in part, before or after shipment of any portion of any accepted order. No purchase order accepted by Bluefors CTI can be subsequently terminated, cancelled, modified, or shipping deferred by the Buyer, unless agreed to by Bluefors CTI, in writing, and upon reasonable terms and conditions that will indemnify and hold harmless Bluefors CTI for all liabilities and expenses incurred or pending, and a reasonable profit to Bluefors CTI for work-in-progress and the value of Products, parts, components, and materials already completed or procured to fulfill the accepted purchase order. If agreed to by the seller, Changes to an order or delays in delivery requested by the buyer after the order has been accepted will be subject to additional charges.

6. **Delivery; Force Majeure.** The shipping date stated on a quotation is an approximate, not firm, shipping date based on a production time under standard conditions. At the time of purchase order, the Buyer must provide to Bluefors CTI a proposed delivery date and complete "Ship To" address(es) in the USA or country(ies) to where the Products are to be delivered. A firm shipping week will be provided when Bluefors CTI issues and acceptance or acknowledgement of the purchase order. Delivery is subject to material availability, production schedules, and receipt of all necessary information at or soon after the time the Buyer's purchase order is accepted. In some cases, acceptance of purchase orders for international orders are conditional upon the granting of a license by the U.S. Government. In the event the request for a license is denied, the purchase order will be rejected. In the event a ship date is missed because of a delay in the licensing approval process, Bluefors CTI will not be liable. Unless expressly specified otherwise, Products in stock will be shipped promptly and Products not in stock will be shipped as soon as practicable. Bluefors CTI will ship the Products according to its standard practices. If a specific shipping date is required, the Buyer must notify Bluefors CTI. The mode, method, and route of shipment are at the sole discretion of Bluefors CTI, unless otherwise agreed, in writing. Bluefors CTI will use its good faith efforts to meet proposed delivery dates. Under no circumstances will Bluefors CTI be liable for any damages, penalties, costs, or offsets arising out of or in connection with the failure to deliver or late delivery of any order including, without limitation, indirect, incidental, consequential, special, liquidated, exemplary, or punitive damages. Special packing or shipping instructions must be mutually agreed upon by the parties, in writing, and all related charges will be invoiced separately to the Buyer for payment. Bluefors CTI will be excused from its delivery obligations and not be liable to the Buyer for failure to sell or supply, for any delay in selling or supplying any of the Products, and the Buyer will be excused from its performance, in the event of or due to acts of God, fire, explosion, flood, war, terrorism, riots, warlike conditions, hostilities, sabotage, civil unrest, labor disputes, epidemic, shortage or failure of supply of raw materials or equipment, shortage or failure of power, interruption, shortage, failure or delay of supply, or communications, or transportation or intervening laws, regulations, orders, decrees, sanctions, embargoes, or any similar actions taken by any governmental authority, or any other unforeseen similar circumstances or events that are beyond the parties' reasonable control and render performance of a party's obligations impossible or impracticable, but only while such occurrences or events continue, unless otherwise agreed, in writing, by the parties.

7. **Acceptance of Products.** The Buyer must promptly inspect the Products upon receipt. Unless the Buyer provides Bluefors CTI with written notice of any claim of shortages or defects in the Products within seven (7) calendar days after receipt of the shipment, the Products will be deemed fully inspected and accepted by the Buyer, unless otherwise agreed, in writing, by the parties.

8. **Payment; Credit; Transfer of Title.** All payments are due according to terms and schedules set forth by

Bluefors CTI when it accepts the Buyer's purchase order or enters into a contract or other agreement for sale of the Products with the Buyer. Bluefors CTI accepts Visa or MasterCard. Payments for purchases of USD $3,000 or more has a 3% processing fee of the total amount. A $50.00 processing fee is issued if the charge exceeds $5,000. No credit card purchase over $10,000 will be accepted. Any late payment is subject to a 1.5% delinquency charge calculated per diem or at the maximum rate allowed by law, whichever is greater. In its sole discretion, Bluefors CTI may offer credit terms to the Buyer on any purchase order it has accepted, or intends to accept, or any contract or other agreement into which it has entered or intends to enter. Bluefors CTI reserves the right to decline or modify credit terms, including shortening the length of payment terms, on any order and to decline shipping the Products to the Buyer for any reason, including, without limitation, the Buyer's financial condition, as determined solely by Bluefors CTI. In addition, in its sole discretion, Bluefors CTI may require payment terms that include down payments, or milestone (progress) payments, including, without limitation, on any special orders that require non-standard materials, or sizes for a particular market, customer, or application. In addition to all rights and remedies available to Bluefors CTI under the law, if the Buyer fails to pay any sum when due or fails to perform under these Terms or any other contract or agreement with Bluefors CTI, upon giving ten (10) calendar days' written notice, Bluefors CTI may discontinue performance under these Terms. Should Bluefors CTI refer the Buyer's outstanding account balance to a third-party for collection or if it should take other enforcement action against the Buyer for non-payment, the Buyer agrees to pay any and all collection fees and costs, filing fees, attorney, arbitration, and related legal expenses incurred by Bluefors CTI. Title to the Products will pass to the Buyer when Bluefors CTI places the Products in the first carrier's possession.

9. **Warranty; Limitation of Remedies and Liability**. Bluefors CTI warrants its Products to be in conformity with all written specifications provided it by the Buyer that the Products are free from defects in design, material, and manufacture, and the Products are suitable for the purposes for which they are manufactured and sold. This warranty does not extend to any attachments, parts, or components or any modifications to the Products of which Bluefors CTI has not received written notice prior to its acceptance or acknowledgement of a purchase order or entering into an agreement for the sale of the Products, that are added, removed, replaced, or otherwise altered or modified, in any way, after the Products are shipped from Bluefors CTI's facility. Failure to comply with such notification will void this warranty and release Bluefors CTI from any liability regarding claims of damaged or defective Products. The warranty period is as defined in Bluefors CTI warranty policy.

The Buyer must inspect the Products on delivery and prior to installation. Any claims for freight damage must be noted on the bill of lading at the time of receipt. The customer must handle the Products in compliance with any Product specifications and storage instructions provided by Bluefors CTI and failure to comply with such specifications or instructions will void this warranty and release Bluefors CTI from any liability regarding claims of damaged or defective Products. Claims for breach of warranty must be provided as soon as practicable upon the discovery of any claimed defective Products. All claims for breach of warranty must be sent, in writing by email to Bluefors CTI at cryomech.sales@bluefors.com. Failure to notify Bluefors CTI of any claimed defect within fifteen (15) days of discovery of the claimed defect voids this warranty and releases Bluefors CTI from all claims of damaged or defective Products and from all liabilities and damages of any kind, including accepting any return or rejection of the Products. All claimed defective Products, parts, and components must be retained for inspection by Bluefors CTI.

If any defect under this warranty is found to exist, Bluefors CTI, at its option, will repair or replace the defective Products, parts, or components. This warranty does not apply to any defects in Products, parts, or components resulting from the negligence, misuse, rough handling, mechanical damage, other casualty, uses, operations, or maintenance not according to Bluefors CTI's specifications or instructions, whether written or oral, or from the alteration or repair of the items by any party other than Bluefors CTI.

To the fullest extent permitted by the applicable law, in lieu of all other warranties express or implied, this warranty sets out the full extent of Bluefors CTI's obligations with respect to claimed defective Products, parts, or

components. All remedies available under this warranty are expressly limited to recovering the value of the repairs or replacements due under this warranty. Bluefors CTI neither assumes nor authorizes any party to assume for it any other obligation or liability in connection with the sale of the Products.

THIS WARRANTY IS THE EXCLUSIVE WARRANTY AND THERE WILL BE NO OTHER WARRANTIES WHETHER EXPRESS, IMPLIED, OR UNDER THE LAW INCLUDING IMPLIED WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE AND MERCHANTABILITY. NO DESCRIPTION BY BLUEFORS CTI OF THE PRODUCTS BEING SOLD HAS BEEN MADE PART OF THE BASIS OF THE BARGAIN OR HAS CREATED OR AMOUNTED TO AN EXPRESS WARRANTY THAT THE GOODS WOULD CONFORM TO ANY DESCRIPTION. THERE ARE NO WARRANTIES OF MERCHANTABILITY OR FITNESS THAT EXTEND BEYOND THIS EXPRESS WARRANTY.

TO THE FULLEST EXTENT PERMITTED BY THE APPLICABLE LAW, UNDER NO CIRCUMSTANCES WILL BLUEFORS CTI BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, LIQUIDATED, EXEMPLARY, OR PUNITIVE DAMAGES OF ANY NATURE, WHETHER BASED ON CONTRACT, TORT, OR STATUTORY, INCLUDING WITHOUT LIMITATION, LOSS OF PROFITS, REVENUE, OR CLIENTS, LOSS OF PRODUCTION, COSTS OF SUBSTITUTE EQUIPMENT, DELAYS, BUSINESS INTERRUPTIONS, CLAIMS BROUGHT AGAINST THE CUSTOMER, AUTHORIZED BUYER, AGENT, OR DISTRIBUTOR BY THIRD-PARTIES, OR LOSS OF OR DAMAGE TO PROPERTY OR EQUIPMENT OTHER THAN THE DELIVERED PRODUCTS, PARTS, OR COMPONENTS. THE EXCLUSIVE REMEDIES OF ANY PARTY UNDER THIS WARRANTY IS LIMITED TO RECOVERING THE VALUE OF THE PURCHASE PRICE OF THE PRODUCTS SOLD BY BLUEFORS CTI.

10. **Intellectual Property Rights.** Bluefors CTI asserts all its trademarks, trade names, trade dress, patents, utility models, industrial designs, drawings, copyrights, sounds, internal manufacturing procedures, product specifications, and all other intellectual property (collectively "Intellectual Property") it owns at the time the Buyer purchases the Products, whether such Intellectual Property rights are registered or not. Unless otherwise agreed in writing by Bluefors CTI, all right, title, and interest in inventions, developments, improvements, or modifications of any Product produced by Bluefors CTI as a result of the Buyer's accepted purchase order will remain exclusively with Bluefors CTI. The Buyer's purchase of the Products does not grant it a license or other rights in Bluefors CTI's Intellectual Property rights. Reverse engineering of Bluefors products is strictly prohibited. In the event a third-party claims any Product sold to the Buyer infringes another party's intellectual property rights, the Buyer must (i) promptly notify Bluefors CTI, in writing, of the claim; and (ii) upon request, grant Bluefors CTI the sole authority to investigate and control the defense of the claim. Whether Bluefors CTI defends or otherwise responds to such a claim brought against the Buyer is within Bluefors CTI's sole discretion. Bluefors CTI has no obligation to defend or otherwise respond to any such claim. Unless otherwise agreed, in writing, the terms of this Article 9 set forth the entire obligation and liability of Bluefors CTI to the Buyer for claims of infringement by any Products sold or supplied to the Buyer by Bluefors CTI.

11. **Compliance with U.S. Trade Laws, Regulations and Export Compliance.** The Buyer warrants and represents that it is familiar and will comply with United States laws, regulations, and Executive Orders, and directives, including, without limitation, the Export Administration Regulations (EAR), economic sanctions regulations, and antiboycott and embargo regulations (including the avoidance and licensing requirements of transactions with any party listed on the Denied Persons List, the Entity List, the Unverified List, the Military End User List, the Specially Designated Nationals and Blocked Persons List, and all other such lists issued by the US Government, maintained by the US Department of Commerce, the US Department of Treasury, and other US Government agencies (the "Trade Laws"), as amended from time-to-time, that may apply to the Buyer or the sale, resale, loan, lease, consignment, or other transfer of the Products to the Buyer or any third-parties as amended from time-to time. The Buyer agrees to indemnify and hold harmless Bluefors CTI from and against all claims, fines, penalties, settlements, assessments, damages, costs and expenses (including attorneys' fees) that may be sustained

by reason of the Buyer's actual, apparent, or alleged failure to comply with such Trade Laws. If the Buyer exports, reexports, or transfers (in-country) the Products, the Buyer assumes responsibility for obtaining all required export and import licenses or other authorizations and must not export, reexport, or transfer (in-country) any Products, software, or technology, in violation the Trade Laws and such similar laws, regulations, orders, decrees of any other country, including their diversion or transshipment. The Buyer agrees to include these requirements in any contracts or other agreements for the resale, loan, lease, consignment, or other transfer of the Products to any third-parties.

12. **Choice of Law; Exclusive Forum.** Without regard to its conflict of law principles, this Agreement will be governed by and construed in accordance with the laws of the State of New York, including its statutes of limitations, and, as applicable to international sales, the United Nations Convention on Contracts for the International Sale of Goods. With respect to sales to a Buyer located in the USA (regardless of the delivery destination of the Products), the Buyer consents and submits to the personal jurisdiction of the federal and state courts located in Onondaga County, New York, which will have exclusive jurisdiction over any disputes, claims, or controversies arising out of or relating to these Terms and the sale of the Products to the Buyer. With respect to sales to a Buyer located outside the USA, any disputes, claims, or controversies arising out of or relating to these Terms and the sale of the Products to the Buyer by Bluefors CTI will be resolved by final and binding arbitration in accordance with the International Arbitration Rules of the International Centre for Dispute Resolution. The seat and venue of the arbitration will be New York City, New York, unless otherwise agreed, in writing. The arbitration will be held before a single arbitrator, who is admitted to the practice of law in any jurisdiction in the USA (active status) and in good standing. As applicable, the Buyer agrees to waive any sovereign immunity claims or defenses. All proceedings will be conducted in English and all monetary awards will be made in U.S. Dollars. The arbitrator may award costs, fees, and other expenses of the arbitration, including attorneys' fees, to the prevailing party. The parties may undertake to carry out any such award, without delay, under the terms of the Convention on the Recognition and Enforcement of Foreign Arbitral Awards (New York Convention) or other applicable conventions or treaties.

13. **General Terms.** If any provision of these Terms is held to be invalid, the remainder of these Terms will survive and not be affected. If either party becomes insolvent, is unable to pay its debts when due, files for bankruptcy, is the subject of involuntary bankruptcy, has a receiver appointed, or has its assets assigned, the other party may, in addition to any other rights provided by law, cancel any unfulfilled obligations. Neither party may assign any rights or obligations under these Terms without the prior written consent of the other party. Neither party's failure to exercise any of its rights under these Terms will constitute or be deemed a waiver or forfeiture of those rights. No government procurement regulations or contract clauses are binding on either party unless required by law or otherwise agreed, in writing.

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